SHERWOOD POLICE DEPARTMENT **Policy: 11.08.00**
Effective: 03-24-26

AUTOMATIC LICENSE PLATE READER (ALPR) POLICY **Revised:**
Reviewed:

PURPOSE: The purpose of this policy is to establish guidelines governing the use, operation, access, management, retention, auditing, and oversight of Automatic License Plate Reader (ALPR) technology used by the Sherwood Police Department.

This policy ensures ALPR technology is used to enhance legitimate law enforcement functions while protecting privacy with Arkansas law and recognized law enforcement accreditation standards.

POLICY: It is the policy of the Sherwood Police Department to utilize Automatic License Plate Reader technology to assist officers in the detection of criminal activity, recovery of stolen vehicles, identification of wanted persons, location of missing persons, and other legitimate criminal justice purposes.

ALPR technology shall be used only for official law enforcement purposes.

The Sherwood Police Department will operate and manage ALPR systems in compliance with Arkansas Code Annotated §12-12-1801 through §12-12-1808

DEFINITIONS

1. Automatic License Plate Reader (ALPR / LPR): A system consisting of cameras and computer software that automatically captures license plate images, converts them to readable data, and compares the plate number against law enforcement databases.
2. ALPR System: A system of one (1) or more mobile or fixed automated high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data
3. Hot List: A database of license plates associated with stolen vehicles, wanted persons, missing persons, criminal investigations, or other law enforcement alerts maintained by ACIC, NCIC, or other authorized databases.
4. ALPR Data: Information collected by the ALPR system including the license plate number, image of the plate and vehicle, date, time, and location of the scan.
5. "Hit" and/or "Alert": An automated alert generated when a license plate scan matches a plate within a hot list database held by the Office of Motor Vehicle, the Arkansas Crime Information Center including without limitation the Arkansas Crime Information Center's Missing Persons Information Clearinghouse, the National Crime Information Center, and the Federal Bureau of Investigation Kidnappings and Missing Persons database;

AUTHORIZED USERS

1. Only Sherwood Police Department personnel authorized by the Chief of Police or designee may access or operate ALPR systems.

2. Access shall be limited to employees who:
    a. Have completed department-approved training.
    b. Have been assigned individual login credentials.

AUTHORIZED USE

1. ALPR systems may be used during legitimate law enforcement activities including:
    a. Routine patrol operations
    b. Directed patrol operations
    c. Criminal investigations
    d. Stolen vehicle recovery
    e. Missing persons investigations
    f. Locating wanted persons
    g. Intelligence development related to criminal activity
    h. Homeland security or public safety threats
    i. Other law enforcement activities approved by the Chief of Police or designee.

PROHIBITED USE

1. ALPR systems shall never be used for personal purposes.
    a. The following uses are strictly prohibited:
        i. Immigration enforcement activities unrelated to a criminal investigation
        ii. Routine traffic enforcement for minor violations
        iii. Harassment or intimidation of any person
        iv. Surveillance based solely on a protected class, including:
            1. Race
            2. Sex
            3. Religion
            4. National origin
            5. Sexual orientation
            6. Disability
        v. Personal use, including checking license plates of acquaintances, neighbors, or personal interests
        vi. Any use unrelated to official law enforcement duties.
2. Violation of this policy may result in disciplinary action following the progressive disciplinary guidelines.

ALPR OPERATION

1. Deployment
    a. ALPR systems may be deployed for the following but are not limited to:
        i. On patrol vehicles (mobile ALPR)
        ii. At fixed locations

iii. During special operations
iv. During crime suppression operations
v. During criminal investigations
vi. During traffic safety operations when related to criminal activity.

2. Hit Verification
    a. When an ALPR alert occurs, the following should be completed, if officer safety allows the time before taking enforcement action:
        i. The officer must visually verify the license plate.
        ii. The officer must confirm the alert through ACIC/NCIC.
        iii. An ALPR hit **shall not be the sole basis for a traffic stop** without verification.
    b. After receiving a hit/alert the responding officer shall log into the web-based site to log the outcome of the hit/alert.
        i. The outcome tracking button ("Mark Outcome") is in the alert screen for the hit/alert received.
        ii. All the fields that apply to that alert and outcome shall be completed to make reporting and accurate record keeping possible. Each entry should include the Case Number (CFS #), Category, Arrests, Disposition, Activity (NIBRS Crimes Codes), Other Crimes (if applicable), Recovery of Vehicles (if applicable).

DATA MANAGEMENT

1. Data Storage
    a. ALPR data shall be stored on secure servers approved by the department.
2. Data Retention
    a. Captured ALPR plate data shall not be retained longer than one hundred fifty (150) days, unless associated with a criminal investigation or prosecution.
3. Data Access
    a. Access to ALPR data is limited to authorized users conducting legitimate criminal justice queries.
    b. All system activity is logged and subject to review.
4. Data Sharing
    a. ALPR data may be shared only with:
        i. Authorized law enforcement agencies
        ii. Prosecutors
        iii. Courts pursuant to legal process
5. Captured plate data shall not be sold, traded, or shared for non-law enforcement purposes.

PRIVACY PROTECTIONS

1. The Sherwood Police Department recognizes the importance of protecting personal privacy.

a. ALPR data shall only be disclosed in accordance with:
    i. Arkansas Code §12-12-1801 through §12-12-1808
    ii. Arkansas Freedom of Information Act.

TRAINING REQUIREMENTS

1. All ALPR operators must complete department-approved training prior to system use.
    a. Training will include:
        i. Operation of ALPR equipment
        ii. Proper response to ALPR alerts
        iii. Data retention and security requirements
        iv. Department policy compliance.
    b. Training shall be documented and maintained in departmental training records.

SUPERVISORY RESPONSIBILITIES

1. Supervisors shall ensure:
    a. Officers comply with this policy.
    b. Any misuse of ALPR systems is investigated.
    c. ALPR equipment issues are reported promptly.
2. Supervisors may review ALPR system activity logs to ensure proper use.
3. Supervisors should review alerts for completion of marking outcomes in the ALPR system.

ALPR SYSTEM AUDITS

1. Audit Frequency
    a. The Chief of Police or designee shall conduct ALPR audits at least annually.
2. Audit Scope
    a. Audits shall examine:
        i. User access logs
        ii. Query justification
        iii. Compliance with retention requirements
        iv. Compliance with prohibited uses
        v. Data security practices
        vi. Policy compliance.
3. Documentation
    a. Audit findings shall be documented and retained for no less than three years for accreditation and compliance purposes.

REPORTING REQUIREMENTS

1. The Chief of Police or designee shall compile a statistical report every six (6) months containing:
    a. Total license plates scanned
    b. Databases names queried
    c. Number of hits
    d. Number of confirmed hits
    e. False alerts
    f. Arrests and prosecutions resulting from ALPR use
    g. Investigations initiated from ALPR alerts.
2. These reports shall be retained for eighteen (18) months and be available for public review upon request.